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Case Number: 23SMCV01274 Hearing Date: July 22, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

PRIMARY HOME

IMPROVEMENT & DESIGN, INC. dba PRIMARY HOMES,

Plaintiff,

v.

CHRISTIE

CARR, et al.,

Defendants.

Case No.:

23SMCV01274

Hearing Date: July 22, 2026

[TENTATIVE]

orderS RE:

CROSS-DEFENDANT KOBE STRUCTURAL ENGINEERING

&

DESIGN DBA KOBE

ENTERPRISES'

DEMURRER TO

CROSS

COMPLAINANT

CHRISTIE CARR'S

SECOND AMENDED

CROSS

COMPLAINT

CROSS-DEFENDANT KOBE STRUCTURAL ENGINEERING

& DESIGN DBA KOBE ENTERPRISES' MOTION TO STRIKE PORTIONS OF

CROSS-COMPLAINANT CHRISTIE CARR'S SECOND AMENDED CROSS-COMPLAINT

Cross-defendant

primary home improvement & design, inc. dba primary homes' motion to

strike portions of the cross-complainant christie carr's second amended

cross-complaint

BACKGROUND

This case arises from a breach of

contract. Plaintiff Primary Home Improvement & Design, Inc. dba Primary

Homes ("Primary Homes") entered into a written contract with Defendant Christie

Carr ("Carr") for Primary Homes to build a new 4,500 square foot home from the

ground up located at 13222 Beach View Estates Drive, Malibu, CA 90265 (the

"Property"). (Compl., ¶ 6.) Primary Homes provided Carr with an estimate of

\$1,960,200. (Ibid.) Primary Homes commenced work at the Property on or

about October 15, 2020. (Id. at ¶ 8.) Construction was substantially

completed by January 2023. (Id. at ¶ 9.) The final inspection was not

finalized due to Carr's installation of a grey water system without the City

permit. (Ibid.)

On January 4, 2023, Primary Homes sent Carr an invoice requesting payment for the unpaid balance of the Contractor's fee totaling \$79,060.78 for work completed. (Id. at ¶ 10.) On January 14, 2023, Primary Homes emailed Carr requesting payment. (Id. at ¶ 11.) On January 18, 2023, Carr caused a letter to be sent providing notice to immediately suspend work. (Id. at ¶ 12.) On January 20, 2023, Primary Homes sent a letter to Carr requesting an expert examine the Property for alleged issues. (Id. at ¶ 13.) Primary Homes did not give permission for an expert to examine the Property or communicate specific issues for withholding money other than one door leaking from rain. (Ibid.) Primary Homes gave notice that the delay and suspension of work is damaging Primary Homes and that Carr had breached the contract due to failure to pay timely undisputed sums due to the Contractor. (Id. at ¶ 14.)

On March 23, 2023, Primary Homes filed its Complaint. The complaint alleges four causes of action for (1) breach of written contract; (2) quantum meruit; (3) foreclosure on mechanics lien; and (4) prompt payment statute (California Civil Code §8800).

On May 30, 2023, Carr filed a Cross-Complaint against Primary Homes for (1) breach of contract and (2) implied covenant of good faith and fair dealing.

On November 13, 2025, Carr filed the First Amended Cross-Complaint ("FACC") adding cross-defendant Kobe Structural Engineering & Design dba Kobe Enterprises ("Kobe"). The FACC alleged causes of action against Kobe for Breach of Contract, Breach of the Implied Covenant of Good Faith and Fair Dealing, Breach of Contract Third-Party Beneficiary, and Professional Negligence, as well as a request for punitive damages. Kobe filed an Answer to the FACC.

On April 29, 2026, Carr filed the Second Amended Cross-Complaint ("SACC"). The SACC contains the same causes of action against Kobe as pled in the FAC, as well as the punitive damages prayer.

On May 27, 2026, Primary Homes filed a Motion to Strike Portions of the Cross-Complainant Christie Carr's Second Amended Cross-Complaint ("Primary Homes' Motion to Strike.")

On

June 17, 2026, Cross-Defendant Kobe ("Kobe") filed a Demurrer to the Cross-Complainant Christie Carr's Second Amended Cross-Complaint ("Demurrer") and a Motion to Strike Portions of the Cross-Complainant Christie Carr's Second Amended Cross-Complaint ("Kobe's Motion to Strike").

On June 24, 2026, Carr filed an opposition to Kobe's Motion to Strike and an opposition to Primary Homes' Motion to Strike.

On June 30, 2026, Primary Home filed a Reply to Carr's opposition to Primary Homes' Motion to Strike.

On July 6, 2026, Carr filed an opposition to the Demurrer and an opposition to Kobe's Motion to Strike.

On July 10, 2026, Kobe filed a reply to Carr's opposition to the Demurrer and a reply to the opposition to Kobe's Motion to Strike.

DEMURRER

REQUEST

FOR JUDICIAL NOTICE

Carr requests judicial notice of: (1) Christie Carr's First Amended Cross-Complaint; (2) Proof of Service of Summons of Christie Carr's First Amended Cross-Complaint on Cross-Defendant Kobe Structural Engineering & Design dba Kobe Enterprises; (3) Cross-Defendant Kobe Structural Engineering & Design dba Kobe Enterprises' Answer to First Amended Cross-Complaint; and (4) Christie Carr's Second Amended Cross-Complaint.

The

Court grants judicial notice for each of these requests. (See Evid. Code, § 452.)

LEGAL

STANDARD

As

a general matter, in a demurrer proceeding, the defects must be apparent on the

face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.” (Code Civ. Proc. [AW13.1]§ 430.10.) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th[AW14.1] 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.* [AW15.1]; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

DISCUSSION

A. Standing to Demur

Kobe

demurs to (1) the first cause of action for breach of contract; (2) the second cause of action for breach of the implied covenant of good faith and fair dealing; (3) the third cause of action for breach of contract – third party beneficiary; and (4) the fourth cause of action for Professional Negligence.

In opposition, Carr argues that, pursuant to Civil Procedure Code section 430.41, Kobe waived its right to demurrer because Kobe filed an answer only to the FACC and did not demur or move to strike. Carr argues that the SACC does not contain new allegations, claims, or causes of action against Kobe. The only added allegations are applicable to other cross-defendants, not Kobe. Thus, the grounds on which Kobe now demurs to the SACC could have been raised by demurrer to the earlier FACC. Carr contends that Kobe has no standing to demur and must file an answer.

In reply, Kobe contends that a condition precedent for the application of this rule is that there was a prior sustained demurrer. However, no such demurrer has been sustained to the FACC. Also, new allegations are brought against Kobe in the SACC. Thus, Kobe has standing to bring the demurrer.

“A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” (Code Civ. Proc., § 430.41, subd. (b).)

The Court agrees that Kobe has standing to bring a demurrer. There has been no previous sustained demurrer to the FACC. Thus, Kobe has standing to bring the Demurrer.

B. First

Cause of Action for Breach of Contract

Kobe

argues that Carr fails to allege the legal effect of the contract or its precise language. Kobe contends that Carr casts allegations without specificity. Carr's allegations are broad and conclusory. Carr does not identify or describe the contract with Kobe and does not even state if she or the general contractor contracted with Kobe. Carr does not state what Kobe did to breach the contract. The SACC does not state which of the listed failures were committed by Kobe. Nor does Carr allege how Kobe's breach caused her damage.

In

opposition, Carr argues that Kobe was identified as a subcontractor engineer who performed work at the Property. Carr claims that Carr could not definitively state which issues were caused by which party, but based on Kobe's involvement and contractual agreement, Carr had reason to believe Kobe was in part responsible for her damages. Carr also contends she alleged to have contractual relations with all the subcontractors, including Kobe, and all these subcontractors had agreement with the general contractor, Primary Homes. Carr also alleges that she suffers damage from the defective designs and will need to rebuild the Property.

"To

establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff.¿ [Citation.]¿ (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.) "If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 229, 307.) "A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect. [Citations.]" (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

Here,

the SACC states: "On or about August 9, 2019, Cross-Complainant entered into and signed the Proposal put forth by BSPK to design and oversee the construction of the Beach View Property." (SACC, ¶ 70.) It also states: "At BSPK's and PRIMARY HOME's direction and urging, Cross-Complainant entered into Subcontracts with multiple SUBCONTRACTORS directly, and many of the SUBCONTRACTORS entered into Subcontracts with either BSPK or PRIMARY HOME but which were for Cross-Complainant's sole benefit." (Id. at ¶ 73.) Kobe is listed as a subcontractor. (Id. at ¶ 33.) Carr does not specify which of the subcontractors she allegedly had a contract with and instead states she had a contract with "multiple" or "many" of the subcontractors.

Additionally,

Carr does not state what the language or legal effect of the contract was with

the subcontractors, including Kobe. Nor does Carr include a written contract with Kobe as an attachment to the SACC. In fact, in the contract with Primary Homes attached to the SACC, the contract specifically notes that: "Nothing contained in the Contract Documents shall create any contractual relationship between any Subcontractor and the Owner." (Id. at Ex. 2.) The Court finds that the SACC does not sufficiently plead the existence of a contract with Kobe. Thus, Carr has failed to sufficiently state a cause of action for breach of contract against Kobe.

Accordingly,
the demurrer to the first cause of action is sustained with leave to amend.

C. Second

Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing

Kobe

contends that because the SACC does not properly allege breach of contract, this cause of action is inadequately plead. Carr does not allege the terms of the contract, the parties to the contract, or what Kobe did to breach the contract. In opposition, Carr argues that she has alleged ample details of bad faith actions by all cross-defendants at the Property.

"There

is an implied covenant of good faith and fair dealing in every contract that neither party will do anything which will injure the right of the other to receive the benefits of the agreement. [Citation.]" (Comunale v. Traders & Gen. Ins. Co. (1958) 50 Cal.2d 654, 658.) To allege a breach of the implied covenant of good faith and fair dealing, the plaintiff must allege, "something beyond breach of the contractual duty itself" and it has been held that "[b]ad faith implies unfair dealing rather than mistaken judgment" (Careau & Co. v. Sec. Pac. Bus. Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394, internal citations omitted.)

Here,

because the Court finds that Carr inadequately pled a contract between Carr and Kobe or the terms of the alleged contract, the Court finds that the second cause of action is inadequately pled.

Accordingly,

the demurrer on the second cause of action is sustained with leave to amend.

D. Third

Cause of Action for Breach of Contract – Third Party Beneficiary

Kobe

contends that this cause of action is insufficiently pled because there is no description of the contract or its terms, much less a discussion of the circumstances in which the contract was agreed to or how Carr is an intended beneficiary under the contract.

In

opposition, Carr argues that she has alleged that all of the subcontractors in the SACC, including KOBE, entered into contracts with Carr directly and/or with the project leaders. Carr has also alleged that the contracts were for her benefit because it was for the reconstruction of her home.

A

contract, made expressly for the benefit of a third person, may be enforced by the third party any time before the parties thereto rescind the contract. (Levy v. Only Cremations for Pets, Inc. (2020) 57 Cal.App.5th 203, 211.) For third party beneficiary doctrine to apply, Plaintiff needs to allege: (1) the third party would in fact benefit from the contract; (2) a motivating purpose of the contracting parties was to provide a benefit to the third party; and (3) permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectation of the parties. (Ibid.) To enforce a contract as a third-party beneficiary, the third party needs to plead a contract which was made expressly for its benefit. (Id. at 212.)

Here,

the court agrees with Kobe that there is no reference to any contract with Kobe within the SACC. Moreover, the Court disagrees with Carr's argument that she has alleged that she has entered into contracts with all of the subcontractors. Carr has not specified which of the "multiple subcontractors" she entered a contract with or how that contract was for her benefit. Carr has conclusively stated that the contract was for her benefit without including any allegations as to how it was to her benefit. (SACC, ¶¶ 127-128.)

Accordingly,
the demurrer to the third cause of action is sustained with leave to amend.

E. Fourth

Cause of Action for Professional Negligence

Kobe

argues that the allegations are insufficient to plead professional negligence. There are no allegations specific to any of the engineers, much less to Kobe. Kobe argues that the SACC does not say what components Kobe failed to design. Kobe cannot determine from the SACC how it breached its duty of care. Moreover, the SACC refers to a declaration of merit by an engineer, but not is attached.

In

opposition, Carr contends that she adequately pled that Kobe is a licensed engineer in the state of California and was employed to provide professional engineering services for the reconstruction of the Property. Carr contends these allegations are sufficient to establish that Kobe is a professional that should be held to a higher standard of care and that Kobe had a duty to Carr since Kobe provided services to the reconstruction.

The

elements of a cause of action for professional negligence are: (1) the duty of the professional to use such skill, prudence and diligence as other members of the profession commonly possess and exercise; (2) breach of that duty; (3) a causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional negligence. When these elements coexist, they constitute actionable negligence. (Nichols v. Keller (1993) 15 Cal.App.4th 1672, 1681.)

The

SACC states: "Cross-Defendants KFSE, KOBE, AJA, and each of them (the "ENGINEERS") are licensed structural and/or civil engineers in the state of California, and were hired to provide such services for the Beach View Property's design and construction for Cross-Complainant's benefit." (SACC, ¶ 135.) It also states: "The ENGINEERS failed to design the Beach View Property in compliance with requisite City of Malibu codes, zoning, and regulations, resulting in the need to redesign, repair, and redo much if not all of the completed work by the Cross-Defendants." (Id. at ¶ 136.) Because Carr has alleged that Kobe is a licensed engineer in the State of California, it can

be inferred that Kobe had a duty to comply with California city codes. By alleging that Kobe failed to comply with those codes, Carr alleges that Kobe breached that duty. Carr also alleges that, as a result of that negligence, Carr was damaged and required to spend "significant capital to repair or redo the work according to the plans and designs by those ENGINEERS." (Id. at ¶ 137.)

Accordingly,
the demurrer to the fourth cause of action is overruled.

KOBE'S
MOTION TO STRIKE

REQUEST
FOR JUDICIAL NOTICE

Carr requests judicial notice of: (1) Christie Carr's First Amended Cross-Complaint; (2) Proof of Service of Summons of Christie Carr's First Amended Cross-Complaint on Cross-Defendant Kobe Structural Engineering & Design dba Kobe Enterprises; (3) Cross-Defendant Kobe Structural Engineering & Design dba Kobe Enterprises' Answer to Christie Carr's First Amended Cross-Complaint; and (4) Christie Carr's Second Amended Cross-Complaint.

The
Court grants judicial notice for each of these requests. (See Evid. Code, § 452.)

LEGAL
STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Kobe moves to strike Carr's claim for punitive damages from the SACC arguing that the SACC fails to allege any specific conduct constituting malice or oppression that was authorized or known and adopted or approved by an officer, director, or managing agent of Kobe.

In opposition, Carr argues to have detailed a clear pattern of deceptive behavior by Primary Homes and its subcontractors and that the facts warrant punitive damages.

Here, the prayer for relief requests punitive damages. (SACC, Prayer for Relief, section C.) However, the request for punitive damages is only alleged in the second cause of action for breach of the implied covenant of good faith and fair dealing. (Id. at ¶ 124.) Because the Court has sustained Kobe's Demurrer as to the second cause of action, Kobe's Motion to Strike punitive damages from that cause of action is moot. Accordingly, Kobe's Motion to Strike is denied as moot.

PRIMARY HOMES' MOTION TO STRIKE

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Primary

Homes moves to strike Carr's claim for punitive damages from the SACC, specifically from paragraph 124 and the prayer for relief. Primary Homes argues none of the allegations of conduct by Primary Homes show clear and convincing evidence of Primary Homes' oppression, fraud, or malice. The allegations do not meet the specificity required to sustain this type of damage claim.

Additionally, Primary Homes contends that, as a corporation, Carr is required to plead facts sufficient to put Primary Homes on notice that one of its agents allegedly engaged in malicious conduct. While Carr identifies Vinnie Sasson ("Sasson") in the SACC, the allegations do not demonstrate how Sasson or any other agents, officers, directors, or managerial agents of Primary Homes, acted maliciously. Primary Homes contends that Carr's broad and conclusory language asserting punitive damages against everyone is insufficient.

In

opposition, Carr argues she details a clear pattern of deceptive behavior by Primary Homes and its subcontractors. The SACC alleges that Primary Homes, through its principal Sasson, deceived Carr into paying for premium products, materials, and services, but then used inferior products and to hiring unqualified laborers.

In

reply, Primary Homes contends that the conclusory language and mere aggravation or outrage is insufficient to show malice, fraudulent, or evil motive. Primary Homes argues the pleadings fail to show Primary Homes had evil intent, ill will, or a deliberate disregard of the interest of Carr.

Civil

Code section 3294 authorizes the recovery of punitive damages in non-contract cases where "the defendant has been guilty of oppression, fraud, or malice" (Civ. Code § 3294(a).) "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Id., § 3294(c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "'Fraud' means an intentional

misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id., § 3294(c)(3).) When the defendant is a corporation, “the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation.” (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Punitive damages thus require more than the mere commission of a tort. (See Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).) Conclusory characterizations of defendant’s conduct as willful, intentional or fraudulent is a patently insufficient statement of the necessary factual grounds for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

“With the exception of bad faith insurance cases, a breach of the covenant of good faith and fair dealing permits a recovery solely in contract.” (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1054.) Since a party “may not recover in tort for ... breach of the implied covenant of good faith and fair dealing,” an “award of punitive damages” is not permitted on such a claim. (Ibid.) In noninsurance cases, breach of the implied covenant of good faith and fair dealing will not give rise to punitive damages. (Id. at pp. 1054-1055.) Any policy arguments for extension to other contexts are properly directed to the Legislature. (Ibid.)

Here, Primary Homes seek to strike paragraph 124 of the SACC, which is a request for punitive damages within the second cause of action for breach of implied covenant of good faith. The SACC states: “Furthermore, in engaging in the foregoing conduct, Cross-Defendants acted wantonly, willfully, oppressively, and despicably, and with a conscious

disregard for Cross Complainant's rights under the Contracts, with a specific intent to deprive the Cross-Complainant of her rights and which put her health and safety at risk. For these reasons, Cross-Complainant is entitled to an award of punitive damages in an amount sufficient to deter Cross-Defendants from such behavior in the future and to make an example of them." (SACC, ¶ 124.) As this case is not a bad faith insurance case, punitive damages are not available for breach of the covenant of good faith and fair dealing based solely in contract.

Accordingly, Primary Homes' motion to strike is granted without leave to amend.

CONCLUSION

For the foregoing reasons, Kobe's Demurrer is sustained in part and overruled in part. The demur to the fourth cause of action is overruled. The demur to the first, second, and third causes of action are sustained with 20 days leave to amend. The Court DENIES Kobe's Motion to Strike as moot. The Court GRANTS Primary Homes' Motion to Strike without leave to amend.

DATED: July 22, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court